

TCPA & Consent Compliance Guidelines

RelayFox operational policy for promotional SMS/MMS programs. Policy v2.4.

EFFECTIVE	February 1, 2026	POLICY OWNER	Avery Singh, Compliance Director
APPLIES TO	U.S. promotional SMS/MMS	REVIEW DATE	August 1, 2026
RETENTION	Minimum 5 years	ESCALATION	compliance@relayfox.example

Corpus notice: This is a synthetic demonstration document created for Cortex Search evaluation. Brand names, people, metrics, URLs, short codes, and incidents are fictional.

Important: This synthetic document is educational and operational in nature. It is not legal advice. Brands must have qualified counsel review federal, state, industry, and carrier requirements for their specific program.

1. Express written consent

Before sending promotional SMS or MMS, RelayFox requires a record showing that the consumer affirmatively agreed to receive recurring automated marketing texts from the identified seller. Consent may not be inferred from a purchase, email subscription, account creation, or a prechecked box.

- Disclosure: State the brand name, recurring marketing purpose, message frequency variability, message/data rate notice, STOP/HELP instructions, links to terms and privacy policy, and that consent is not a condition of purchase.
- Affirmative action: Acceptable examples include an unchecked checkbox submitted by the consumer, a valid keyword response, a QR landing-page form, or a signed paper form that is later digitized.
- Identity: Keep the phone number, consent timestamp in UTC, source URL or keyword, IP/device or session identifier when available, exact disclosure version, and evidence of the affirmative action.
- Scope: Consent is brand-specific. Juniper & Coast consent does not authorize messages for an affiliated brand unless the disclosure clearly identifies both sellers.

2. STOP, HELP, and revocation handling

Inbound	RelayFox action	Target SLA	Required response
STOP, END, CANCEL, UNSUBSCRIBE, QUIT, REVOKE, OPT OUT	Immediately add the normalized number to the brand suppression ledger and cancel queued promotional sends.	Within 60 seconds	Juniper & Coast: You are unsubscribed and will receive no more marketing texts. Reply START to resubscribe.
HELP or INFO	Return brand identification, support contact, frequency statement, and opt-out instruction.	Within 60 seconds	Juniper & Coast alerts: recurring messages. Msg & data rates may apply. Help: support@junipercoast.example. Reply STOP to opt out.
Natural-language revocation such as "do not text me"	Route to intent classifier; suppress when confidence >= 0.85 or send to human review.	Within 5 minutes	Confirmation should be functionally equivalent to the STOP response.

A confirmation message may be sent after opt-out, but it must contain no marketing content. Support agents must not remove a suppression unless the consumer sends START or completes a new compliant opt-in.

3. Quiet hours and frequency

RelayFox enforces a platform policy of 8:00 AM-8:00 PM recipient local time for promotional SMS/MMS, which is intentionally stricter than some baseline federal calling-hour rules. Brands must apply any stricter state requirement. When timezone is unknown, RelayFox uses the most conservative supported timezone inferred from billing/shipping state and defers rather than sends near a boundary.

- Default promotional cap: no more than 4 messages in a rolling 7-day period and 12 in a rolling 30-day period, excluding transactional messages.
- Automated flow messages count toward the same cap. A flash-sale broadcast does not override cart or welcome-flow frequency limits.
- Messages queued near 8:00 PM are cancelled if projected completion extends beyond the policy window. This control was added after RF-INC-2025-0822-PNW.

4. Record-keeping and audit package

Record	Minimum fields	Retention
Consent event	Phone, brand, timestamp, source, disclosure text/version, affirmative action, IP/session if available	5 years after last message
Message event	Campaign/flow ID, template version, content hash, send/delivery timestamps, route, carrier result	5 years
Opt-out event	Inbound text, timestamp, classifier outcome, suppression timestamp, confirmation message	5 years
Data import	Uploader, file name/hash, source attestation, field mapping, row-level rejects	5 years
Policy approval	Reviewer, date, campaign purpose, audience, offer, final copy, test evidence	3 years

5. Prohibited or high-risk practices

- Purchased, rented, scraped, appended, or shared phone lists without brand-specific consent evidence.
- Misleading sender identity, bait-and-switch offers, hidden recurring-message terms, or prechecked marketing boxes.
- Public link shorteners, rotating domains intended to evade filtering, or links that redirect through unrelated domains.
- Age-restricted, lending, debt-relief, controlled-substance, or other regulated content without a separately approved program and carrier review.
- Continuing to message a number after STOP because the user remains subscribed to email or has an active order.

6. Illustrative civil exposure and escalation

Private TCPA claims commonly seek \$500 per violation, and a court may increase damages up to \$1,500 per willful or knowing violation. Regulatory actions, state-law remedies, carrier suspension, contractual indemnity, and litigation costs may add separate exposure. These figures are included for synthetic training context and are not a prediction of liability.

Any suspected unauthorized send to more than 100 recipients, opt-out failure longer than 15 minutes, quiet-hour breach, or consent-record loss must be escalated to Compliance and Security within 30 minutes. Preserve campaign configuration, audience exports, logs, screenshots, and operator activity; do not alter source records.

7. Pre-launch checklist

- 1 Consent source sampled and disclosure version verified.
- 2 STOP/HELP test completed from at least two carriers.
- 3 Audience suppression, quiet-hour projection, and frequency caps passed.
- 4 Offer terms, landing page, branded domain, and expiration match approved copy.
- 5 Campaign ID, 10DLC use case, route, and expected TPS validated.
- 6 Final content hash and approver recorded in RelayFox.